

PRE-SOLICITATION NON-COMPETITIVE –

Notice of Intent to Sole Source

1. **SOLICITATION NUMBER: PCA-NLM-0027**
2. **TITLE:** Microbox Cobra II A1 V-cradle scanners.
3. **RESPONSE DATE:** April 6, 2026, at 4:00 pm EST.
4. **PRIMARY POINT OF CONTACT:**

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I. INTRODUCTION:

THIS IS A PRE-SOLICITATION NON-COMPETITIVE (NOTICE OF INTENT) SYNOPSIS TO AWARD A CONTRACT WITHOUT PROVIDING FOR FULL OR OPEN COMPETITION (INCLUDING BRAND-NAME).

The National Library of Medicine (NLM) seeks a new maintenance agreement for its Microbox Cobra II A1 V-cradle scanners. The scanners are used to digitize collection materials for online access, supporting the congressional mandate that the Library make these materials available to the public. A maintenance agreement is needed to ensure the scanners produce preservation-quality images and support digitization production goals.

In 2015, NLM completed an acquisition for the purchase of the two Microbox Cobra II AI V-cradle scanners with device maintenance for a base period and four one year options. In 2021, NLM completed an acquisition for the maintenance of the two scanners for a base period and four one year options

II. NORTH AMERICAN INDUSTRY CLASSIFICATION SYSTEM (NAICS) CODE and SET ASIDE STATUS

NAICS code 811210 - Computer and Office Machine Repair and Maintenance with a business size standard classification of \$34 M. This acquisition is NOT set aside for small businesses.

III. REGULATORY AUTHORITY

The resultant contract will include all applicable provisions and clauses in effect through the Federal Acquisition Circular (FAC) 2024-07 dated 08-29-2024.

This acquisition is conducted under the procedures as prescribed in FAR subpart 13.5—Simplified Procedures for Certain Commercial Items and FAR subpart 12—Acquisition of Commercial Items at an amount exceeding the SAT, and not exceeding \$7 million.

IV. STATUTORY AUTHORITY

This acquisition is for a commercial item or service and is conducted under the authority of the FAR Subpart 13.5—Simplified Procedures for Certain Commercial Items and the statutory authority of [specify the applicable authority: (1) FAR 6.302-1—Only one responsible source and no other supplies or services will satisfy agency requirements 41 U.S.C. 3304 (a)(1).

V. DESCRIPTION OF REQUIREMENT:

A. PURPOSE AND OBJECTIVES:

The Contractor shall provide all labor, material and equipment necessary to maintain and provide preventive maintenance for NLM's Microbox Cobra II A1 V-cradle scanners. The scanners are used to digitize collection materials for online access, supporting the congressional mandate that the Library make these materials available to the public. A maintenance agreement is needed to ensure the scanners produce preservation-quality images and support digitization production goals. All maintenance services shall be performed on-site in accordance with the manufacturer's standard commercial maintenance practices.

The agreement shall ensure the scanners are kept operational and in good working order to support NLM's digitization program.

Maintenance services shall ensure that the scanners produce images of device level targets that meet a minimum 3-star performance level for bound volumes as specified in the Federal Agencies Digital Guidelines Initiative's Technical Guidelines for Digitizing Cultural Heritage Materials (2023)

[<https://www.digitizationguidelines.gov/guidelines/DRAFT%20Technical%20Guidelines%20for%20Digitizing%20Cultural%20Heritage%20Materials%20-%203rd%20Edition.pdf>]

As part of their duties, the NLM asks the contractor to assure that the operation of the scanners is made as accessible as possible consistent with Section 508 of the Rehabilitation Act of 1973 (29 USC 794d).

B. PERIOD OF PERFORMANCE:

NLM anticipates a firm fixed price purchase order. This requirement shall consist of a 12-month base period and (4) 12-month option periods plus additional option quantities. The estimated period of performance shall be as follows:

Base Period: April 8, 2026–April 7, 2027

Option Period One: April 8, 2027– April 7, 2028

Option Period Two: April 8, 2028– April 7, 2029

Option Period Three: April 8, 2029–April 7, 2030

Option Period Four: April 8, 2030–April 7, 2031

C. PROJECT REQUIREMENTS:

The Contractor shall perform periodic, at a minimum semi-annual, on-site maintenance and complete calibration check of capture system focus, lighting, and grayscale and color capture correctness. Technically qualified factory-trained personnel shall perform Service. All equipment shall be operationally tested through at least one (1) complete operating cycle at the end of the preventive maintenance inspection to assure optimum and efficient performance.

4.2 AD HOC SERVICE

The Contractor shall perform on-demand maintenance and technical support as needed, including

- Priority one: production issues within 24 hours of notification from NLM
- Priority two: other issues within 5 business days of notification from NLM.

4.3 SOFTWARE UPDATES/SERVICE

The Contractor shall provide Software Service and updates in accordance with the manufacturer's latest established service procedures, to include telephone access to technical support for use of program software and trouble shooting of the operating systems, at no additional cost to the Government. The contractor shall receive advance approval for the installation of all software updates and revisions from the Government. Defective software shall be replaced at no additional cost to the government.

4.4 REPLACEMENT PARTS

The Contractor shall furnish all required replacement parts at no additional cost to the Government, with the exception of consumables. Parts shall be new to original equipment specifications.

Technically qualified factory-trained personnel shall perform service to the two Microbox Cobra II A1V-cradle scanners, as covered by this contract. All primary service personnel shall have at least one backup support person with at least the same level of expertise on the equipment covered by this contract.

The Contractor shall not be responsible for any repairs necessitated by abuse, neglect, vandalism, Acts of God, fire or water. These repairs shall be the subject of a separate purchase order and shall not be performed under this contract.

Contractor shall have access to proprietary parts and test instrumentation for effective repair in case of malfunction. Technical performance requirements include system

coverage on the subject equipment by Original Equipment Manufacturer (OEM) factory-trained, authorized technicians and providers of any required parts and software or proprietary diagnostic software and software enhancements must be OEM certified (new or like-new) and compatible with the subject equipment.

Contractor shall be required to provide written documentation in achieving this statement of work during the period of performance. The original documentation shall be provided by the vendor to show they completed service.

Service shall include labor and parts coverage, extended coverage hours, on-site labor response, technical telephone response (call-back to schedule), and planned maintenance, diagnostics software license and service documentation, and preferred labor rate.

VI. CONTRACTING WITHOUT PROVIDING FOR FULL OR OPEN COMPETITION (INCLUDING BRAND-NAME) DETERMINATION

The determination by the Government to award a contract without providing for full and open competition is based upon the market research conducted. Specifically, Ristech Company Inc. is the only vendor in the marketplace that can provide the services required by NLM. The equipment is proprietary to its manufacturer, Ristech Company Inc, and this company is the sole provider of maintenance for this equipment.

In accordance with FAR part 10, extensive market research was conducted to reach this determination. Additionally, contacts with knowledgeable individuals both in industry and Government, as well as reviews of available product literature, revealed no other sources. Finally, a review of the GSA Advantage, Dynamic Small Business Search, and previous government acquisitions returned no results that meet all of the requirements. Therefore, only Ristech Company Inc. is capable of meeting the needs of this requirement.

The intended source is:
Ristech Company Inc.
5115 Harvester Road / Unit 8
Burlington / Ontario L7L 0A3
CANAD

VII. CLOSING STATEMENT

THIS SYNOPSIS IS NOT A REQUEST FOR COMPETITIVE PROPOSALS. However, interested parties may identify their interest and capability to respond to this notice.

A determination by the Government not to compete this proposed contract based upon responses to this notice is solely within the discretion of the Government. All responsible sources may submit a capability statement, proposal, or quotation which shall be considered by the agency. The information received will normally be considered solely for the purposes of determining whether to proceed on a non-competitive basis or to conduct a competitive procurement. This notice does not obligate the Government to award a contract or otherwise pay for the information provided in response.

Responses to this notice shall contain sufficient information to establish the interested

parties' bona-fide capabilities for fulfilling the requirement and include: unit price, list price, shipping and handling costs, the delivery period after contract award, the prompt payment discount terms, the F.O.B. Point (Destination or Origin), the Dun & Bradstreet Number (DUNS), the Taxpayer Identification Number (TIN), and the certification of business size. All offerors must have an active registration in the System for Award Management (SAM) www.sam.gov.

All responses must be received by the closing date and time of this announcement and must reference the solicitation number, **PCA-NLM-0027**. Responses must be submitted electronically to Jaddua Johnston, Contract Specialist at Jaddua.Johnston@nih.gov.